

House File 989

H-1230

- 1 Amend House File 989 as follows:
- 2 1. Page 1, line 17, after <structure> by inserting <used>
- 3 2. Page 1, by striking lines 20 through 23 and inserting:
- 4 <(a) A liquid digester storage structure, including a
- 5 liquid digester manure storage structure and a liquid digester
- 6 feedstock storage structure.
- 7 (b) A dry digester manure stockpile.
- 8 (c) A dry digester feedstock stockpile.
- 9 (d) A liquid digestate storage structure.
- 10 (e) A dry digestate stockpile.>
- 11 3. Page 1, after line 25 by inserting:
- 12 <2. "Covered" means organic or inorganic material placed
- 13 upon a digester structure used to store any of the following:
- 14 a. Digester manure.
- 15 b. Digester feedstock.
- 16 c. Digestate.
- 17 3. "Designated object or location" means any of the
- 18 following:
- 19 a. A commercial enterprise.
- 20 b. A bona fide religious institution.
- 21 c. An educational institution.
- 22 d. A public use area.>
- 23 4. Page 1, line 26, by striking <2.> and inserting <4.>
- 24 5. Page 1, by striking lines 29 through 33 and inserting:
- 25 <5. a. "Digester feedstock" means organic material, other
- 26 than digester manure, originating either on-farm or off-farm,
- 27 that is used to effectuate the digestion process as part of an
- 28 anaerobic digester system.
- 29 b. "Digester feedstock" includes either or both of the
- 30 following:>
- 31 6. Page 2, by striking lines 1 through 12 and inserting:
- 32 <6. a. "Digester manure" means manure originating on-farm
- 33 that is stored as part of the anaerobic digester system if used
- 34 to effectuate the digestion process by a digester processing
- 35 structure.

1 *b. "Digester manure"* includes either or both of the
2 following:
3 (1) Dry digester manure.
4 (2) Liquid digester manure.
5 7. *"Digester processing structure"* means a structure that is
6 part of an anaerobic digester system if used to effectuate the
7 digestion process by a digester processing structure.
8 8. *"Digester stockpile"* means any of the following:
9 *a.* A dry digester manure stockpile.
10 *b.* A dry digester feedstock stockpile.
11 *c.* A dry digestate stockpile.
12 9. *"Digester structure"* means any of the following:
13 *a.* A liquid digester storage structure, including a liquid
14 digester manure storage structure and a liquid digester
15 feedstock storage structure.
16 *b.* A digester processing structure.
17 *c.* A liquid digestate storage structure.>
18 7. Page 2, line 13, by striking <8.> and inserting <10.>
19 8. Page 2, line 18, by striking <9.> and inserting <11.>
20 9. Page 2, by striking lines 20 and 21 and inserting:
21 <12. *"Dry digestate stockpile"* means dry digestate
22 originating from an anaerobic digester system and stored as
23 part of the anaerobic digester system outside a digester
24 structure or on-farm outside any other structure.>
25 10. Page 2, line 22, by striking <11.> and inserting <13.>
26 11. Page 2, line 24, by striking <12.> and inserting <14.>
27 12. Page 2, after line 25 by inserting:
28 <15. *"Dry digester manure"* means digester manure that meets
29 the dry classification requirement in section 459.707.
30 16. *"Dry digester manure stockpile"* means dry digester
31 manure that is part of an anaerobic digester system if stored
32 outside a digester structure.
33 17. *"Dry digester stockpile"* means any of the following:
34 *a.* A dry digester manure stockpile.
35 *b.* A dry digester feedstock stockpile.

1 18. "*Effluent*" means the same as defined in section
2 459A.102.

3 19. "*Federal Water Pollution Control Act*" means the federal
4 Water Pollution Control Act of 1972, 33 U.S.C. ch. 26, as
5 amended, and 40 C.F.R. pts. 122 and 412.>

6 13. Page 2, line 26, by striking <13.> and inserting <20.>

7 14. Page 2, line 28, by striking <14.> and inserting <21.>

8 15. Page 2, line 30, by striking <14.> and inserting <22.>

9 16. Page 2, by striking line 32 and inserting:

10 <23. "*Liquid digester feedstock storage structure*" means a
11 structure that is part of an anaerobic digester system if used
12 to store liquid digester feedstock or dry digester feedstock or
13 both before undergoing a digestion process as effectuated by a
14 digester processing structure.

15 24. "*Liquid digester manure*" means digester manure other
16 than dry digester manure.

17 25. "*Liquid digester manure storage structure*" means a
18 structure that is part of an anaerobic digester system if used
19 to store liquid digester manure or dry digester manure or both
20 before undergoing a digestion process as effectuated by a
21 digester processing structure.

22 26. "*Liquid digester storage structure*" means either of the
23 following:

24 a. A liquid digester manure storage structure.

25 b. A liquid digester feedstock storage structure.

26 27. "*Manure management plan*" means a manure management plan,
27 including an updated manure management plan, as provided in
28 section 459.312.

29 28. "*Nutrient management plan*" means a nutrient management
30 plan or an updated nutrient management plan as provided in
31 section 459A.208.

32 29. "*Off-farm*" means real property that is not on-farm.>

33 17. Page 2, line 33, by striking <17.> and inserting <30.>

34 18. Page 3, by striking lines 4 and 5 and inserting
35 <construction, including expansion, or management of,

1 structures used for the on-farm storage of digester manure,
2 digester feedstock, or digestate; the on-farm stockpiling of
3 dry digester manure, dry digester feedstock, or dry digestate;
4 and the on-farm application of digestate originating from an
5 anaerobic digester system.>

6 19. Page 3, by striking lines 15 through 18 and inserting
7 <including expansion, or management of, structures used for
8 the on-farm storage of digester manure, digester feedstock,
9 or digestate; the on-farm stockpiling of dry digester manure,
10 dry digester feedstock, or dry digestate; and the on-farm
11 application of digestate originating from an anaerobic digester
12 system.>

13 20. Page 3, line 23, by striking <application forms> and
14 inserting <applications>

15 21. Page 3, by striking lines 25 through 31 and inserting
16 <under this subchapter, including a liquid digester manure
17 storage structure, liquid digester feedstock storage structure,
18 digester processing structure, and liquid digestate storage
19 structure. For administrative efficiency, the department
20 shall provide a single application form that combines all
21 applications together into a total application form.>

22 22. Page 4, by striking lines 10 through 12 and inserting:
23 <feeding operation are any of the following:

24 (1) Adjacent.

25 (2) Under common ownership.

26 (3) Under common management.>

27 23. Page 4, by striking line 17 and inserting <to paragraph
28 "b", subparagraphs (1), (2), and (3).>

29 24. Page 6, by striking lines 8 and 9 and inserting:

30 <1. Except as otherwise provided in this subchapter, the
31 term "*manure*" includes effluent if used as part of the digestion
32 process.>

33 25. Page 6, line 10, by striking <Digester feedstock or
34 digestate> and inserting <Digester manure, digester feedstock,
35 or digestate>

1 26. Page 6, line 12, by striking <feedstock or digestate>
2 and inserting <manure, digester feedstock, or digestate>
3 27. Page 6, line 14, by striking <feedstock or digestate>
4 and inserting <manure, digester feedstock, or digestate>
5 28. Page 6, by striking lines 17 and 18 and inserting:
6 <c. The constituent molecules of the digester manure,
7 digester feedstock, or digestate do not flow freely among
8 themselves but may show a>
9 29. Page 6, line 20, by striking <is limited to processing>
10 and inserting <must process>
11 30. By striking page 6, line 32, through page 7, line 2, and
12 inserting:
13 <4. a. Except as provided in paragraph "b", digester manure
14 shall not be regulated as manure.
15 b. If digester manure and digester feedstock are combined,
16 the digester feedstock shall be regulated as digester manure.
17 5. a. Except as provided in paragraph "b", a digestate
18 shall not be regulated as manure.
19 b. (1) If digestate is removed from a digester processing
20 structure and at any time is combined with manure, the
21 digestate shall be regulated as manure under this chapter and
22 chapter 459B, as applicable.
23 (2) If a digestate is removed from a digester processing
24 structure and at any time is combined with effluent, the
25 digestate shall be regulated as effluent under chapter 459A.
26 Sec. _____. NEW SECTION. **459.708 Digester manure and digester**
27 **feedstock — required storage.**
28 A person receiving digester manure or digester feedstock at
29 an anaerobic digester system must store the digester manure or
30 digester feedstock as follows:
31 1. Liquid digester manure or liquid digester feedstock must
32 be stored in a liquid digester storage structure.
33 2. Dry digester manure must be stored in any of the
34 following:
35 a. A dry digester stockpile.

1 *b.* A liquid digester storage structure.

2 3. Dry digester feedstock originating on-farm must be
3 stored in any of the following:

4 *a.* A dry digester stockpile.

5 *b.* A liquid digester storage structure.

6 4. Dry digester feedstock originating off-farm must be
7 stored in a liquid digester storage structure.

8 5. A person may move manure or feedstock from outside an
9 anaerobic digester system for direct processing by using a
10 digester processing structure that is part of an anaerobic
11 digester system,

12 6. A person removing digestate from an anaerobic digester
13 system must store the digestate in a manner that complies with
14 section 459.311.

15 Sec. _____. NEW SECTION. 459.709 Digestate — required
16 storage.

17 1. A person processing digester manure or digester
18 feedstock at an anaerobic digester system must store the
19 resulting digestate as follows:

20 *a.* Liquid digestate must be stored in a liquid digestate
21 storage structure.

22 *b.* Dry digestate must be stored in any of the following:

23 (1) A dry digestate feedstock stockpile.

24 (2) A liquid digestate storage structure.

25 2. A person removing digestate from an anaerobic digester
26 system must store the digestate in a manner that complies with
27 section 459.311.>

28 31. Page 7, by striking lines 6 through 8 and inserting
29 <permit must be issued prior to the construction of a digester
30 structure, including a liquid digester manure storage
31 structure, liquid digester feedstock storage structure,
32 digester processing structure, or liquid digestate storage>

33 32. Page 8, by striking lines 15 through 18.

34 33. Page 9, after line 9 by inserting:

35 <9. The applicant shall submit a construction permit

1 application fee as part of the total application form. The fee
2 shall not exceed two hundred fifty dollars. Moneys collected
3 by the department from the payment of fees under this section
4 shall be deposited by the department in the general fund of the
5 state.>

6 34. Page 9, by striking lines 10 through 25 and inserting:

7 <Sec. _____. NEW SECTION. 459.712 Liquid digester manure
8 storage structure — construction permit.

9 In addition to the applicable requirements in section
10 459.711, an application for a permit to construct a liquid
11 digester manure storage structure must include all of the
12 following information:

13 1. A description of the type and amount of digester manure
14 to be stored in the digester feedstock storage structure.

15 2. The storage capacity of the liquid manure storage
16 structure.

17 3. A description of the digester processing structure
18 used to process the received digester manure and any digester
19 feedstock.

20 4. Any other information determined relevant by the
21 department as provided by rules adopted by the department.>

22 35. Page 9, line 26, by striking <Digester> and inserting
23 <Liquid digester>

24 36. By striking page 9, line 28, through page 10, line 10,
25 and inserting:

26 <In addition to the applicable requirements in section
27 459.711, an application for a permit to construct a liquid
28 digester feedstock storage structure must include all of the
29 following information:

30 1. A description of the type and amount of any digester
31 feedstock to be stored in the liquid digester feedstock storage
32 structure.

33 2. The storage capacity of the liquid digester feedstock
34 storage.

35 3. A description of the liquid digester processing

1 structure used to process the received manure and digester
2 feedstock.

3 4. Any other information determined relevant by the
4 department as provided by rules adopted by the department.>

5 37. Page 10, after line 15 by inserting:
6 <a. (1) A description of the type and amount of digester
7 manure that is capable of being processed in the digester
8 processing structure at any one time.>

9 38. Page 10, line 16, by striking <a.> and inserting <(2)>

10 39. Page 10, line 22, after <management> by inserting <, or
11 both,>

12 40. Page 11, by striking lines 14 through 18.

13 41. Page 11, by striking lines 19 through 28.

14 42. Page 11, line 29, by striking <459.716> and inserting
15 <459.715>

16 43. By striking page 11, line 31, through page 12, line 10,
17 and inserting:
18 <In addition to the applicable requirements in section
19 459.711, an application for a permit to construct a liquid
20 digestate storage structure must include all of the following
21 information:
22 1. A description of the type and amount of digestate to be
23 stored in the liquid digestate storage structure.
24 2. The storage capacity of the liquid digestate storage
25 structure.
26 3. Any other information determined relevant by the
27 department as provided by rules adopted by the department.>

28 44. Page 12, line 11, by striking <Construction> and
29 inserting <General construction>

30 45. Page 12, by striking lines 14 through 16 and inserting
31 <construction design standards for a formed digester structure,
32 including a formed liquid digester manure storage structure,
33 formed liquid digester feedstock storage structure, formed
34 digester processing structure, or formed liquid>

35 46. Page 13, line 6, by striking <Construction> and

1 inserting **<General construction>**
2 47. Page 13, by striking lines 9 through 11 and inserting
3 <construction design standards for an unformed digester
4 structure, including an unformed liquid digester manure
5 storage structure, unformed liquid digester feedstock storage
6 structure, unformed digester processing structure, or>
7 48. Page 13, by striking lines 18 and 19 and inserting
8 <applicable to an unformed liquid digester manure storage
9 structure, unformed liquid digester feedstock storage
10 structure, unformed digester processing structure, or unformed>
11 49. Page 13, line 26, before <structure> by inserting
12 <unformed digester>
13 50. Page 15, lines 11 and 12, by striking <manure storage>
14 and inserting <digester>
15 51. Page 15, line 17, by striking <material> and inserting
16 <digester manure, digester feedstock, and digestate>
17 52. Page 16, after line 3 by inserting:
18 <3. For purposes of this section, a digester structure
19 that is part of an anaerobic digester system identified with
20 an open feedlot operation shall be deemed to be part of an
21 anaerobic digester system identified with a confinement feeding
22 operation.>
23 53. Page 16, line 6, before <The> by inserting <1.>
24 54. Page 16, after line 10 by inserting:
25 <2. For purposes of this section, a digester structure
26 that is part of an anaerobic digester system identified with
27 an open feedlot operation shall be deemed to be part of an
28 anaerobic digester system identified with a confinement feeding
29 operation.>
30 55. Page 16, by striking lines 13 through 15 and inserting
31 <If digestate is applied on land subject to a manure management
32 plan or a nutrient management plan, the manure>
33 56. Page 16, line 26, by striking <feedstocks> and inserting
34 <feedstock>
35 57. Page 17, by striking lines 14 and 15 and inserting

1 <Control Act.>
2 58. Page 17, line 16, by striking <the dry> and inserting
3 <dry>
4 59. Page 18, after line 20 by inserting:
5 <Sec. _____. NEW SECTION. 459.737 Applying liquid digestate
6 — air quality.
7 1. Except as provided in subsection 2, the separation
8 distance required between the application of liquid manure
9 on land and a residence not owned by the titleholder of the
10 land or a designated object or location as provided in section
11 459.204 shall be the same separation distance required between
12 the application of liquid digestate on land and a residence not
13 owned by the titleholder of the land or designated object or
14 location.
15 2. The same exceptions that allow a person to apply liquid
16 manure on land within the separation distance required in
17 section 459.204 as provided in section 459.205, subsection
18 4, apply to allow a person to apply liquid digestate on land
19 within that separation distance.>
20 60. Page 18, line 21, by striking <459.737> and inserting
21 <459.738>
22 61. Page 18, line 21, by striking <dry>
23 62. Page 18, by striking lines 27 and 28 and inserting
24 <system pursuant to the federal Water Pollution Control Act.>
25 63. Page 19, line 14, by striking <459.737> and inserting
26 <459.738>
27 64. By renumbering, redesignating, and correcting internal
28 references as necessary.

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